

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
GASPAR PEREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. SHUMANN
BATTIST, P.O. SAMANTHA HEIM, AND
"JOHN DOES 1-10,"

Defendants.

Index No.:

Purchased On:

Plaintiff designates
the County of Kings
as the place of trial

The basis of the venue is
place of occurrence

SUMMONS

----- X

To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
May 16, 2015

BENNO & ASSOCIATES P.C.

By: 
Ameer Benno, Esq.
30 Wall Street, 8th Floor
New York, NY 10005
Tel.: (212) 227-9300

Ameer Benno, Esq.
BENNO & ASSOCIATES P.C.
30 Wall Street, 8th Floor
New York, NY 10005
Tel.: (212) 227-9300
abenno@ameerbenno.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

GASPAR PEREZ,

Plaintiff,

vs.

THE CITY OF NEW YORK, P.O. SHUMANN
BATTIST, P.O. SAMANTHA HEIM, AND "JOHN
DOES 1-10",

Defendants.

Index No.:

COMPLAINT

JURY TRIAL REQUESTED

Plaintiff, by his attorneys, BENNO & ASSOCIATES P.C., complaining of Defendants, alleges as follows, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of his civil rights under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff also asserts claims under New York law.

JURY TRIAL DEMANDED

2. Plaintiff demands trial by jury of all issues properly triable thereby.

VENUE

3. Venue is proper for the Supreme Court, County of Kings, pursuant to CPLR §

504(3), as it is the county within the City of New York in which the incident occurred.

THE PARTIES

4. Plaintiff GASPAR PEREZ is a United States citizen and a citizen of the City and State of New York, County of Kings.

5. That at all times herein mentioned, defendant CITY OF NEW YORK (hereinafter "CITY") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

6. That at all times herein mentioned, defendant CITY operated, controlled and maintained a police force known as the New York Police Department ("hereinafter "NYPD").

7. That at all times herein mentioned, defendant P.O. SHUMANN BATTIST (hereinafter, "BATTIST") was and is an NYPD officer employed by defendant CITY.

8. That at all times herein mentioned, defendant BATTIST was acting within the course and scope of his employment with defendant CITY.

9. That at all times herein mentioned, defendant BATTIST was acting under color of state law.

10. Defendant BATTIST is sued herein in both his individual and official capacities.

11. That at all times herein mentioned, defendant P.O. SAMANTHA HEIM (hereinafter, "HEIM") was and is an NYPD officer employed by defendant CITY.

12. That at all times herein mentioned, defendant HEIM was acting within the course and scope of her employment with defendant CITY.

13. That at all times herein mentioned, defendant HEIM was acting under color of state law.

14. That defendant HEIM is sued herein in both her individual and official capacities.

1 15. That at all times herein mentioned, defendants JOHN DOES 1 through 10 were
2 and are NYPD officers and employed by defendant CITY.

3 16. That at all times herein mentioned, defendants JOHN DOES 1 through 10 were
4 acting within the course and scope of their employment with defendant CITY.

5 17. That at all times herein mentioned, defendants JOHN DOES 1 through 10 were
6 acting under color of state law.

7 18. The names "JOHN DOES 1 through 10" are fictitious, as these defendants' true
8 names are presently unknown.

9 19. These defendants are intended to be the law enforcement personnel involved in
10 the stop, detention, assault, battery, searches, arrest, imprisonment, and prosecution of plaintiff.

11 20. That defendants JOHN DOES 1 through 10 are sued herein in both their individual
12 and official capacities.

13 21. That at all times herein mentioned, defendant CITY was under an obligation to use
14 reasonable care in the hiring, training, retention, and supervision of its employees, including,
15 without limitation, defendants BATTIST, HEIM, and JOHN DOES 1-10 .

16 22. At all relevant times herein, the individual defendants acted jointly and in concert
17 with each other.

18 23. Each individual defendant had the duty and the opportunity to protect plaintiff
19 from the unlawful actions of the other individual defendants, but each individual defendant failed
20 and refused to perform such duty, thereby proximately causing plaintiff's injuries.

JOINT AND SEVERAL LIABILITY

 24. That all of the causes of action pleaded herein fall within one or more of the
exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and

1 several liability.

2 **STATEMENT OF FACTS**

3 25. The facts stated in this complaint are based, inter alia, on the personal knowledge
4 of plaintiff regarding events in which he was directly involved and upon information and belief.
5 The sources of “information and belief” factual statements are primarily documents from the
6 underlying criminal prosecution and related public documents which are currently available to
7 plaintiff. Those sources are incomplete, particularly, without limitation, as to numerous
8 documents and court exhibits. This complaint is drawn without the benefit of full discovery
9 proceedings.

10 26. Plaintiff repeats and realleges each and every allegation set forth above as though
11 fully set forth at length herein.

12 27. On or about July 5, 2014 at approximately 11:45 p.m., plaintiff was lawfully
13 present on the side of 961 Belmont Avenue near the corner of Belmont Avenue and Chestnut
14 Street, between Belmont and Pitkin Avenues, in Brooklyn, New York.

15 28. Plaintiff was standing on the sidewalk when a group of police officers, including
16 defendants herein, approached plaintiff.

17 29. Defendants intentionally and/or with deliberate indifference to plaintiff’s
18 constitutional and civil rights forcibly seized, detained, and arrested plaintiff without justification,
19 privilege or probable cause.

20 30. Defendants viciously, violently, and without any lawful justification, assaulted
plaintiff before, during, and after they took him into custody, though plaintiff did not at any point
struggle or resist arrest.

31. Defendants gratuitously used force against plaintiff and used more force than was

1 reasonably necessary against plaintiff.

2 32. Plaintiff was falsely imprisoned in defendants' custody for an extended period of
3 time.

4 33. While plaintiff was unlawfully imprisoned, defendants knowingly relayed false
5 allegations against plaintiff that they had devised to the Kings County District Attorney's Office,
6 which used that information to draft a criminal court complaint against plaintiff.

7 34. Thereafter, defendants signed said criminal court complaint, which, based on the
8 fabricated information that defendants had provided to the District Attorney's Office, charged
9 plaintiff with a count of resisting arrest and two counts of disorderly conduct.

10 35. Plaintiff did not commit the offenses with which he was charged, nor did he
11 commit any offense or engage in any unlawful conduct on July 5, 2014; nor did any police officer
12 observe plaintiff do so.

13 36. Defendants signed the criminal court complaint, thereby swearing to the veracity
14 of its allegations, under penalty of perjury, despite their knowing that there was no truth to those
15 allegations whatsoever, that these allegations against plaintiff were false and completely
16 fabricated, that there was never any legal basis to have detained or arrested plaintiff, and that there
17 was no legal basis to prosecute him.

18 37. All defendants conspired to lodge these false allegations against plaintiff and
19 initiate a prosecution against him for offenses they knew he did not commit.

20 38. Defendants made these false allegations against plaintiff with actual malice, and
out of spite and ill will, and with retributive purpose.

39. Defendants engaged in the above-described conduct intentionally and/or with
deliberate indifference to plaintiff's constitutional and civil rights.

1 40. Thereafter, plaintiff was arraigned on that criminal court complaint under Kings
2 County Docket Number 2014KN050814 and was released on his own recognizance.

3 41. Plaintiff thereafter was required on several occasions to appear in court to defend
4 against the false criminal charge that had been lodged against him.

5 42. The prosecution of plaintiff continued until approximately March 19, 2015, at
6 which time all charges against plaintiff were dismissed.

7 43. As a result of the foregoing, plaintiff sustained, inter alia, loss of earnings, loss of
8 enjoyment of life, loss of liberty, severe physical injuries, emotional distress, mental anguish,
9 embarrassment and humiliation, shame, indignity, damage to reputation, incurred monetary costs,
10 economic loss, and deprivation of his constitutional rights.

11 44. The amount of damages sought in this action exceeds the jurisdictional limits of all
12 lower Courts that might otherwise have jurisdiction.

13 **FIRST CLAIM FOR RELIEF AGAINST DEFENDANTS**
14 **BATTIST, HEIM AND DOES 1-10**

15 **(False Arrest/Imprisonment Claim Under 42 U.S.C. § 1983)**

16 45. Plaintiff repeats and realleges each and every allegation set forth above as though
17 fully set forth at length herein.

18 46. Defendants, while acting in concert and within the scope of their employment and
19 authority, and without a warrant, seized plaintiff, forcibly put plaintiff into handcuffs, placed
20 plaintiff under arrest without any reasonable cause to believe that plaintiff had committed, was
committing, or was about to commit any offense, and caused plaintiff to be imprisoned, and
thereby deprived plaintiff of his rights, liberties, and freedoms under color of state law, including
plaintiff's right to be free from unreasonable searches and seizures under the Fourth and
Fourteenth Amendments to the United States Constitution.

1 **SECOND CLAIM FOR RELIEF AGAINST DEFENDANTS**
2 **BATTIST, HEIM AND DOES 1-10**

3 **(Excessive Force Claim Under 42 U.S.C. § 1983)**

4 47. Plaintiff repeats and realleges each and every allegation set forth above as though
5 fully set forth at length herein.

6 48. Defendants, acting in concert and within the scope of their employment and
7 authority, used objectively unreasonable force in arresting plaintiff, in violation of plaintiff's right
8 to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United
9 States Constitution.

10 **THIRD CLAIM FOR RELIEF AGAINST DEFENDANTS**
11 **BATTIST, HEIM AND DOES 1-10**

12 **(Malicious Prosecution Claim Under 42 U.S.C. § 1983)**

13 49. Plaintiff repeats and realleges each and every allegation set forth above as though
14 fully set forth at length herein.

15 50. Defendants, acting in concert and within the scope of their employment and
16 authority, caused plaintiff to be prosecuted with malice and without probable cause – a
17 prosecution that terminated in plaintiff's favor – in violation of plaintiff's right to be free from
18 unreasonable seizures under the Fourth and Fourteenth Amendments to the United States
19 Constitution.

20 **FOURTH CLAIM FOR RELIEF AGAINST DEFENDANTS**
 BATTIST, HEIM AND DOES 1-10

(Malicious Abuse of Process Claim Under 42 U.S.C. § 1983)

 51. Plaintiff repeats and realleges each and every allegation set forth above as though
COMPLAINT - 7

1 fully set forth at length herein.

2 52. Defendants, acting in concert and within the scope of their employment and
3 authority, employed regularly issued process against plaintiff compelling the performance or
4 forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff
5 without economic or social excuse or justification, and the defendants were seeking a collateral
6 advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the
7 process. Such collateral objective included, but was not limited to, covering up defendants' illegal
8 actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

9 53. The acts and conduct of the defendants were the direct and proximate cause of
10 injury and damage to plaintiff and that by virtue of the aforementioned acts, plaintiff was deprived
11 of his rights, privileges and immunities secured by the Constitution of the United States, including
12 his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution to be free from
13 unreasonable or unlawful searches and seizures and to due process of law.

14 **FIFTH CLAIM FOR RELIEF AGAINST DEFENDANTS**
15 **BATTIST, HEIM AND DOES 1-10**

16 **(Failure to Intervene Claim Under 42 U.S.C. § 1983)**

17 54. Plaintiff repeats and realleges each and every allegation set forth above as though
18 fully set forth at length herein.

19 55. Each individual defendant had an affirmative duty to intervene on behalf of
20 plaintiff, whose constitutional rights were being violated in that defendant's presence by other
police officers, but failed to intervene to prevent the unlawful conduct, despite having had a
realistic opportunity to do so, in violation of plaintiff's right under the Fourth and Fourteenth
Amendments to the United States Constitution.

1 **SIXTH CLAIM FOR RELIEF AGAINST DEFENDANT CITY**

2 **(Municipal Liability “Monell” Claim under 42 U.S.C. § 1983)**

3 56. Plaintiff repeats and realleges each and every allegation set forth above as though
4 fully set forth at length herein.

5 57. The individual defendants, singly and collectively, while acting within the scope of
6 their employment and authority and under color of state law, engaged in conduct that constituted
7 customs, policies, practices, procedures, rules, or usages of the NYPD and their specific
precinct(s) forbidden by the Constitution of the United States.

8 58. The foregoing customs, policies, practices, procedures, rules, and usages include,
9 but are not limited to, making arrests without probable cause, subjecting individuals to excessive
force, and committing perjury.

10 59. The abuse to which plaintiff was subjected was consistent with an institutionalized
11 practice of the NYPD, which was known to and ratified by defendant CITY.

12 60. Despite knowledge of these institutionalized practices, defendant CITY has at no
13 time taken any effective action to prevent NYPD personnel from continuing to engage in this type
of misconduct.

14 61. Defendant CITY had prior notice of the vicious propensities of defendants
15 BATTIST, HEIM, and DOES 1-10, but took no steps to train them, correct their abuse of
16 authority, or to discourage their unlawful use of authority.

17 62. The failure of defendant CITY to properly train defendants BATTIST, HEIM, and
18 DOES 1-10 included the failure to instruct them in applicable provisions of the State Penal Law of
19 the State of New York, federal and state constitutional limitations, and the proper and prudent use
20 of force.

1 63. Defendant CITY authorized, tolerated as institutionalized practices, and ratified
2 the misconduct detailed above by, among other things:

- 3 a. Failing to properly discipline, train, restrict, and control employees, including
4 defendants BATTIST, HEIM and DOES 1-10, known to be irresponsible in
5 their dealings with citizens of the community;
- 6 b. Failing to take adequate precautions in the training, hiring, promotion, and
7 retention of police personnel, including specifically defendants BATTIST,
8 HEIM and DOES 1-10.
- 9 c. Failing to forward to the office of the District Attorney of Kings County
10 evidence of unlawful acts committed by police personnel;
- 11 d. Failing to establish or assure the functioning of a bona fide and meaningful
12 departmental system for dealing with complaints of police misconduct, but
13 instead responding to these types of complaints with bureaucratic power and
14 official denials calculated to mislead the public.
- 15 e. That the failure to supervise and/or train by defendant CITY of defendants
16 BATTIST, HEIM, and DOES 1-10 rose to the level of deliberate indifference
17 to the consequences of its actions, and indifference to plaintiff's rights,
18 privileges and immunities secured by the Constitution of the United States of
19 America, inter alia, plaintiff's Fourth and Fourteenth Amendment rights.

20 64. The NYPD has inadequately screened, hired, retained, trained, and supervised its
employees, including the individual defendants herein, to respect the constitutional rights of those
individuals with whom NYPD police officers come in contact.

65. The foregoing customs, policies, practices, procedures, rules, and usages constituted deliberate indifference to plaintiff's safety, well-being, and constitutional rights.

66. The foregoing customs, policies, practices, procedures, rules, or usages were the direct and proximate cause of the constitutional violations suffered by plaintiff.

67. The foregoing customs, policies, practices, procedures, rules, or usages were the moving force behind the constitutional violations suffered by plaintiff.

Supplemental State Law Claims

68. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

69. Within ninety (90) days after the claims herein arose, plaintiff duly served upon, presented to, and filed with defendant CITY OF NEW YORK a Notice of Claim and an Amended Notice of Claim setting forth all facts and information required under New York General Municipal Law § 50-e.

70. More than thirty (30) days have elapsed since the presentation of plaintiff's claims to defendant CITY, and defendant CITY has wholly neglected or refused to make an adjustment or payment thereof.

71. This action was commenced within one (1) year and ninety (90) days after the claims accrued.

72. Plaintiff has complied with all conditions precedent to maintaining the instant action.

1 **SEVENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

2 **(False Arrest/Imprisonment Claim under New York Law)**

3 73. Plaintiff repeats and realleges each and every allegation set forth above as though
4 fully set forth at length herein.

5 74. Defendants, acting in concert and within the scope of their employment and
6 authority, arrested and caused plaintiff to be imprisoned without probable cause to believe that
7 plaintiff had committed any crime or offense, and without any warrant or authority to do so.

8 75. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
9 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

10 **EIGHTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

11 **(Assault Claim under New York Law)**

12 76. Plaintiff repeats and realleges each and every allegation set forth above as though
13 fully set forth at length herein.

14 77. Defendants, acting in concert and within the scope of their employment and
15 authority, placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

16 78. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
17 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

18 **NINTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

19 **(Battery Claim under New York Law)**

20 79. Plaintiff repeats and realleges each and every allegation set forth above as though
fully set forth at length herein.

1 80. Defendants, acting in concert and within the scope of their employment and
2 authority, made offensive contact with plaintiff without privilege or consent.

3 81. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
4 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

5 **TENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

6 **(Malicious Prosecution Claim Under New York Law)**

7 82. Plaintiff repeats and realleges each and every allegation set forth above as though
8 fully set forth at length herein.

9 83. Defendants, acting in concert and within the scope of their employment and
10 authority, caused plaintiff to be prosecuted with malice and without probable cause – a
11 prosecution that terminated in plaintiff’s favor.

12 84. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
13 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

14 **ELEVENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

15 **(Abuse of Process Claim under New York Law)**

16 85. Plaintiff repeats and realleges each and every allegation set forth above as though
17 fully set forth at length herein.

18 86. Defendants, acting in concert and within the scope of their employment and
19 authority, employed regularly issued process against plaintiff compelling the performance or
20 forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff
without economic or social excuse or justification, and the defendants were seeking a collateral

1 advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the
2 process. Such collateral objective included, but was not limited to, covering up defendants' illegal
3 actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

4 87. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
5 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

6 **TWELFTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

7 **(Intentional Infliction of Emotional Distress)**

8 88. Plaintiff repeats and realleges each and every allegation set forth above as though
9 fully set forth at length herein.

10 89. Defendants, acting in concert and within the scope of their employment and
11 authority, engaged in the aforesaid conduct which was extreme, outrageous, shocking and which
12 exceeded all reasonable bounds of decency.

13 90. Defendants' extreme and outrageous conduct was intended to cause and did cause
14 severe emotional distress to plaintiff.

15 91. Defendant CITY is liable for the damages suffered by plaintiff as a result of the
16 conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

17 **THIRTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

18 **(Negligence / Gross Negligence)**

19 92. Plaintiff repeats and realleges each and every allegation set forth above as though
20 fully set forth at length herein.

93. That the aforesaid incident and resulting injuries to plaintiff were due to the

1 negligence and/or gross negligence of defendants, and each of them, in the manner in which they
2 performed their duties as officers of the NYPD; in failing to exercise reasonable care in
3 connection with the performance of their duties; in failing adequately to evaluate the situation
4 confronting them; and in otherwise being negligent and/or grossly negligent.

5 94. That the aforementioned incident and injuries to plaintiff were caused solely and
6 wholly by reason of the recklessness, carelessness, and negligence and/or gross negligence of
7 defendants herein and without any negligence on the part of plaintiff contributing thereto.

8 95. Defendant CITY is liable for the damages suffered by the plaintiff as a result of the
9 conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

10 **FOURTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

11 **(Negligent Screening, Hiring, Supervision, And Retention Claim Under New York Law)**

12 96. Plaintiff repeats and realleges each and every allegation set forth above as though
13 fully set forth at length herein.

14 97. Defendants failed to use reasonable care in the screening, hiring, supervision, and
15 retention of the NYPD employees who participated in the above unlawful conduct.

16 98. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
17 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

18 **FIFTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

19 **(Negligent Training Claim under New York Law)**

20 99. Plaintiff repeats and realleges each and every allegation set forth above as though
fully set forth at length herein.

1 100. Defendants failed to use reasonable care in the training of the NYPD employees
2 who participated in the above unlawful conduct.

3 101. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
4 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

5 * * *

1 **PRAYER FOR RELIEF**

2 **WHEREFORE**, plaintiff demands the following relief jointly and severally against all the
3 defendants:

- 4 a. Compensatory damages in an amount to be determined at trial;
5 b. Punitive damages in an amount to be determined at trial;
6 c. Attorney's fees pursuant to 42 U.S.C. § 1988;
7 d. An award of plaintiff's costs of suit;
8 e. Pre-judgment and post-judgment interest;
9 f. Such other relief as this Court deems just and proper.

9 Dated: New York, New York
10 May 16, 2015

12 Respectfully submitted,

13 BENNO & ASSOCIATES P.C.

14 By: _____


Ameer Benno, Esq.
30 Wall Street, 8th Floor
New York, NY 10005
Tel.: (212) 227-9300
Attorneys for Plaintiff